

is not hereby required to enter such appearance, the plaintiff may apply to the Court for leave to enter appearance for such defendant; and the Court, being satisfied that the subpœna was duly served, and that no appearance has been entered for such defendant, may, if it think fit, order the same accordingly.

Any appearance entered at the instance of the plaintiff for a defendant, who at the time of the entry thereof shall be an infant, or person of weak or unsound mind, unable of himself to defend the suit, shall be irregular and of no validity.

XXI.

If upon default, made by a defendant, in not appearing to or not answering a bill, it appear to the Court that such defendant is an infant, or person of weak or unsound mind, not so found by inquisition, so that he is unable of himself to defend the suit, the Court may upon the application of the plaintiff order that one of the solicitors of the Court be assigned guardian of such defendant, by whom he may appear to and answer, or may answer the bill and defend the suit.

Appointment of Guardian.

But no such Order is to be made unless it appears to the Court on the hearing of such application, that the subpœna to appear and answer the bill was duly served, and that notice of such application was after the expiration of the time allowed for appearing or for answering the bill, and at least six days before the hearing of the application, served upon or left at the dwelling-house of the person with whom or under whose care such defendant was at the time of serving such subpœna, and (in the case of such person being an infant, not residing with or under the care of his father or guardian) that notice of such application was also served upon or left at the dwelling-house of the father or guardian of such infant, unless the Court, at the time of hearing such application, thinks fit to dispense with such last mentioned notice.

Service of Subpœna and notice before appointment of Guardian.

The English Orders on this practice are as follow:— Order 29 of 1845 corresponds to the above Order 20, and is as follows:—(the parts differing from the words of the above Orders are Italicised).

English Orders on this practice.

If any Defendant, not appearing to be an infant or a person of weak or unsound mind, unable of himself to defend the suit, *is*, when within the jurisdiction of the Court, duly served with a Subpœna to appear *to or to appear to* and answer a Bill, and refuses or neglects to appear thereto within *eight* days after such service, the Plaintiff

English Order XXIX.